

Terms of Service (ToS)

Last updated: March 15, 2026

1. Nature of the Service and Medical Disclaimer

1.1. **Assistive Tool Only:** Aivota provides an Artificial Intelligence-driven communication moderator and a **Proprietary Symbol Set** designed to assist individuals with communication impairments.

1.2. **Not a Medical Device:** You acknowledge that **Aivota is not a medical device**, and its outputs do not constitute medical advice, diagnosis, or treatment. It is intended solely as a functional communication aid.

1.3. **AI Limitations:** The service utilizes Generative AI which may occasionally produce "hallucinations" or inaccurate predictions. Caregivers must supervise use, especially in critical safety or medical contexts.

2. Intellectual Property & License Grant

2.1. **Ownership:** Aivota (and/or its founder, Opher Suhami, pending full incorporation) owns all rights, title, and interest in the software, the AI models, and the **Proprietary Symbol Set** (the "IP").

2.2. **Limited License:** We grant you a personal, non-exclusive, non-transferable, and revocable license to use the IP solely for the purpose of personal communication through the Aivota platform.

2.3. **Strict Restrictions:** You shall not:

- Extract, copy, or redistribute the **Proprietary Symbol Set** outside of the platform.
- Use the IP to train, develop, or improve any third-party AI models or AAC systems.
- Reverse-engineer or "scrape" the platform's code or content.

3. Liability and Warranty Disclaimers

3.1. **"As-Is" Basis:** The service is provided "As-Is." To the extent permitted by law, Aivota disclaims all warranties, express or implied.

3.2. **Liability Cap:** In accordance with **Israeli Standard Contracts Law (2026)** and U.S. commercial standards, Aivota's total liability for any claim shall be limited to the amount actually paid by you for the service during the **12 months** preceding the claim.

3.3. **Exclusion:** We are not liable for any communication errors, emotional distress, or

consequential damages resulting from AI-generated outputs.

4. AI Transparency (U.S. Compliance - CA/TX/CO)

4.1. **Disclosure:** In compliance with **California AB 2013** and **Texas TRAIGA (2026)**, we disclose that this system uses generative AI trained on large datasets to predict and generate communication boards.

4.2. **Human-in-the-Loop:** We encourage "Human-in-the-loop" verification for all critical communications.

5. Termination

5.1. **Mutual Right:** Either party may terminate this agreement at any time with **30 days** written notice.

5.2. **Immediate Breach:** Aivota reserves the right to suspend access immediately if it detects unauthorized scraping or IP theft related to the Proprietary Symbol Set.

6. Governing Law and Jurisdiction

6.1. **Israeli Users:** This agreement is governed by the laws of the **State of Israel**. Pursuant to **Amendment No. 3 to the Contracts Law (2026)**, the written text of this agreement shall be the primary source of interpretation. Exclusive jurisdiction lies with the courts of Tel Aviv-Jaffa.

6.2. **U.S. Users:** Disputes shall be governed by the laws of the **State of Delaware** (or your state of incorporation).

6.3. **Class Action Waiver:** To the extent permitted by law, you agree to resolve disputes on an individual basis and waive any right to participate in a class-action lawsuit.